

INTERAGENCY AGREEMENT

WITNESSETH

WHEREAS, this Interagency Agreement (the "Agreement") is made and entered into, by the Miami Beach Police Department, hereafter referred to as the "Host Agency", and Broward County Sheriff's Office hereafter referred to as BSO, which are criminal justice agencies, formally recognized by the Federal Bureau of Investigations (FBI) and the Florida Department of Law Enforcement (FDLE); and

WHEREAS, The Host Agency presently has the benefit of access to the Florida Department of Law Enforcement "Hot List" from the Vigilant LPR Server, as well as Detection Data from the Host Agency; and

WHEREAS, The BSO wishes to access the Florida Department of Law Enforcement "Hot List" from the Vigilant LPR Server, as well as Detection Data from the Host Agency;

NOW THEREFORE, the parties agree as follows:

1. The BSO shall be entitled to use, through agents and employees of the Host Agency, the computer system provided via the Host Agency for the purpose of gaining access to the Florida Department of Law Enforcement "Hot List", as well as Detection Data from the Host Agency.
2. The BSO agrees to abide by all applicable local, state, and federal laws, rules and regulations, as well as the FBI CJIS Security Policy and rules and regulations of the Host Agency, with regard to the use of said computer systems.
3. The BSO agrees to abide by all the terms and conditions of the Criminal Justice User Agreement executed between the FDLE and the Host Agency, dated *August 09, 2019* a copy of which is attached to this Interagency Agreement.
4. The BSO agrees that it shall make use of the information technology systems only for the administration of criminal justice.
5. Either party may terminate this Agreement upon thirty (30) days written notice, except that the Host Agency may terminate this Agreement immediately and without notice upon finding that the BSO has violated any term of this Agreement.
6. Each party agrees to be liable for any and all claims, suits, damages, including court costs and attorney's fees, arising out of the negligent or intentional acts or omissions of its own agents, subcontractors, and employees, in the course and scope of such party's utilization, access, distribution or any other usage of any information obtained by way of this Agreement.
7. Nothing herein contained is intended to serve, nor shall be interpreted as a waiver of any defense or limitation of liability afforded a governmental entity as a result of sovereign immunity, or to extend or increase either party's liability as provided in Section 768.28, Florida Statutes. Said financial limitations shall apply to any and all claims and actions including, but not limited to, those arising out of contract or tort.
8. This Agreement shall be construed in accordance with the laws of the State of Florida. This Agreement shall be enforceable in Miami-Dade County, Florida, and if legal action is necessary by either party with respect to the enforcement of any or all of the terms or conditions herein, exclusive venue for the enforcement of same shall lie in Miami-Dade County, Florida.
9. This Agreement constitutes the entire agreement of the parties and may not be modified or amended without a written agreement executed by both parties.

IN WITNESS HEREOF, the parties hereto have caused this Agreement to be executed by the appropriate officers and officials.

Miami Beach Police Department

Agency Name

DocuSigned by:
Rick Clements Rick Clements 11/16/2021 | 9:46 AM EST
0DC5E1B0A19A4F2...
Agency Head

DocuSigned by:
Robin Henson Robin Henson 11/16/2021 | 10:13 AM EST
0F17EE74A9...
Witness Date

Broward County Sheriff's Office

Agency Name

DocuSigned by:
Gregory Tony
995FAB8C8146487
Gregory Tony, Sheriff
Agency Head

DocuSigned by:
Katherine Wilson 11/12/2021 | 11:58 AM EST
DD041B2924974C3...
Witness Date

Approved as to form and legal sufficiency
Subject to the execution by the parties:

By: Terrence Lynch DS
Terrence Lynch, General Counsel
Broward County Sheriff's Office